

Baseline outcomes

A. Overall participation and dispositions (percent of potential disputes)

Outcome	American	British
Plaintiff files	80.89	82.19
Both participate / reach bargaining	43.58	43.88
Not filed	19.11	17.81
Not answered	37.32	38.31
Settled	8.34	18.26
Plaintiff abandons	0.00	0.00
Defendant defaults	0.00	0.00
Trial	35.23	25.62
Plaintiff wins at trial	15.46	12.81
Defendant wins at trial	19.77	12.81

B. Conditional participation and settlement (percent)

Outcome and conditioning event	American	British
Defendant answers, given filing	53.87	53.39
Settled, given reaching bargaining	19.15	41.61
Plaintiff files, given $T = 1$	92.80	93.49
Plaintiff files, given $T = 0$	68.99	70.89
Defendant answers, given filing and $T = 1$	38.89	37.99
Defendant answers, given filing and $T = 0$	74.01	73.70

C. Truth-relative net outcomes and expenditures (damages units)

Measure	American	British
Meritorious-P net recovery shortfall ($T = 1$)	0.433	0.418
Nonliable-D net burden ($T = 0$)	0.444	0.396
Liable-D excess net burden above damages ($T = 1$)	0.056	0.095
Net Outcome Fidelity Loss (ex ante)	0.466	0.455
Real litigation expenditures (ex ante)	0.292	0.266

Cost multiplier 1; 10 offers. $T = 1$: truly liable; $T = 0$: nonliable. Trial-win rows partition trials, not all disputes. Conditional answering divides joint filing-and-answering by filing within the indicated truth group. P and D denote plaintiff and defendant. Lower loss/burden measures indicate smaller shortfalls or excess burdens; they are not error probabilities.